

unless there is a stay of the sanction, the order is directly enforceable by issuing a writ of execution. (See *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615.) Whereas a contempt pursuant to CCP 1218 is criminal in nature. (See *Powers v. Superior Court of Shasta County* (1967) 253 Cal.App.2d 617.)

Contempt proceedings alleging an indirect contempt require an affidavit to be presented to the judge reciting the facts that constitute contempt. (*Koehler v. Superior Court* (2010) 181 Cal.App.4th 1153, 1169.) The contempt citation must be personally served. (*Id.*) A contempt that took place outside the judge's presence must show the following: (1) issuance of the order, (2) the contemner's knowledge of the order, (3) **the contemnor's ability to obey it**; and (4) the contemner's willful disobedience. (*Id.*; **emphasis added.**) At any contempt trial merely showing that a party has failed to pay sanctions is insufficient as proof beyond a reasonable doubt of the offense of contempt as proof of the party's ability to pay is required under the law. There are other requirements as well under the law such as appointment of counsel for an accused who has the inability to pay for counsel represent him or her at the contempt trial.

This motion is unnecessary as the court order awarding attorney fees in this matter is already treated as a judgment. Second, the court declines to issue an order to show cause why the party should not be found in contempt for failing to pay the award of attorney fees. Counsel should seek to enforce the attorney fees award by all legal means available to enforce a judgment.

The motion is denied.

**2. 9:00 AM CASE NUMBER: C23-02562**  
**CASE NAME: MARINER WALK CORPORATION VS. JULIAN TAYS**  
**\*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED**  
**FILED BY: CRUZ, IRIS CORZO**  
**\*TENTATIVE RULING:\***

The unserved motion is continued to March 20, 2026, at 9 am for defendant to effectuate service.

**3. 9:00 AM CASE NUMBER: C23-02669**  
**CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS**  
**\*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**  
**FILED BY: RW WILLIAMS CONSTRUCTION, INC.**  
**\*TENTATIVE RULING:\***

Hearing continued by the court to January 23, 2026, at 9am.

**4. 9:00 AM CASE NUMBER: C23-02833**  
**CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD. OF**  
**DOCUMENTS SET 1**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Motion moot. Default has been entered.

**5. 9:00 AM CASE NUMBER: C23-03069**  
**CASE NAME: THERESA SULLIVAN VS. MICHELLE COLETTI**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**  
**FILED BY: COLETTI, MICHELLE**  
**\*TENTATIVE RULING:\***

Hearing continued to March 20, 2026, at 9am. Service did not include the date, time and location of the motion as required by CCP 1010 and California Rules of Court, rule 3.1110(b).

**6. 9:00 AM CASE NUMBER: C24-01590**  
**CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**  
**FILED BY: CLANCY, TIMOTHY F.**  
**\*TENTATIVE RULING:\***

Plaintiff Timothy Clancy's Motion for Leave to file a First Amended Complaint is granted. The proposed FAC attached to the motion is not deemed filed. Plaintiff must file and serve a stand-alone First Amended Complaint, in the form attached to the motion, no later than December 12, 2025.

#### **Background**

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy alleges that debris, fill material, and other man-made materials from Defendant Anthony Jurado's property were discharged into the creek, altered the flow of water, and caused erosion and damage to his property. The June 16, 2024 complaint includes causes of action for negligence, trespass, private and public nuisance, premises liability, and equitable indemnification, and seeks both damages and injunctive relief requiring cleanup and restoration of the creek. On September 13, 2024, Jurado filed a cross-complaint against Clancy asserting claims for indemnity, contribution, and declaratory relief, alleging that any damages Clancy sustained were caused primarily by Clancy or others and that Jurado is entitled to reimbursement or allocation if he is found liable.

On August 1, 2025, Plaintiff moved for leave to file a first amended complaint (FAC) to conform the pleading to proof. The proposed FAC adds three negligence claims premised on alleged violations of the California Water Code and Contra Costa Municipal Code, a declaratory relief claim, joins Paula Jurado as a co-owner defendant, supplements factual allegations with information obtained in discovery, and corrects clerical errors.

#### **Legal Standard and Procedural Requirements for Leave to Amend**

It is well-established under California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) "If the motion to amend is timely made and... granting...the